

Assessment

TIO reference	2020/03/05403
Service provider	Dodo
Account holder	Mr Richard Mclean
Date	22 May 2020

This document sets out my Assessment of a complaint from Mr Richard Mclean about Dodo.

Assessment

In my view, Dodo's response to the complaint is fair and reasonable. Dodo has:

- credited a total of \$180 to Mr Mclean's account.
- confirmed that it will charge \$60 per month (after discounts) for Mr Mclean's NBN service.

Dodo is not otherwise required to take further action, such as compensating Mr Mclean for his business loss. This is because:

- Mr Mclean is not entitled to business loss compensation,
 - The TIO does not consider claims for non-financial losses in these circumstances,
 - Dodo's credits are sufficient to cover the service charges for the fault period, and
 - Dodo has committed to charging Mr Mclean \$60 for his NBN services
 - Mr Mclean agreed to a 12 month contract term for his NBN services.
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Background

Mr Mclean had an ADSL internet service with Dodo. His service address is 2 McCubbin Street, Footscray VIC 3011.

The complaint and Dodo's response

Service faults and compensation

Mr Mclean says his Dodo ADSL internet service drops out and is unreliable. He says that sometimes he cannot connect to the internet at all using the service.

Mr Mclean runs a business from home and says that the internet service issues have meant that he is unable to operate his business. He says that he has lost around \$3,400 in trade over a period of about a month.

In late April 2020, Mr Mclean applied for an NBN internet service with Dodo. His service was connected in early May 2020. The service issues are not present on the new NBN connection.

Mr Mclean is seeking compensation for the impact of the service issues on his business. He is also seeking reimbursement of service charges for the time that he was experiencing service issues.

NBN service charges and contract term

Following Mr Mclean's move to the NBN, there was disagreement about the monthly charge for the NBN service and contract term.

Mr Mclean says Dodo told him he would pay \$60 per month after discounts when he signed up. He says Dodo later said that his monthly charge would be \$65 following discounts. He says Dodo says he is on a 12 month contract, which he disputes.

Dodo's response

Dodo said that it would not consider Mr Mclean's claim for business loss compensation, because he has a residential service.

Dodo has applied a total credit of \$180, made up of the following credits:

- \$60 on 21 March 2020,
- \$60 on 30 April 2020, and
- \$60 on 15 May 2020.

Dodo revised its position in relation to the NBN service charges. Dodo says that, after

discounts, Mr Mclean will be charged \$60 per month for his NBN services. Dodo says Mr Mclean is on a 12 month contract.

Reasons

Mr Mclean is not entitled to business loss compensation

In my view, Mr Mclean is not entitled to compensation for the impact that the service disruption had on his business.

Mr Mclean has a residential service with Dodo. Dodo's standard form of agreement states that it provides services for household or domestic use, and specifically excludes liability for losses resulting from using the service in connection with the conduct of a business. Dodo's acceptable use policy states that its residential services should not be used for commercial or business purposes.

Dodo does not warrant that its service will be suitable for commercial use and advises against using its services for this purpose in its acceptable use policy. Considering Dodo's terms and conditions, including its acceptable use policy, I do not consider it reasonable to hold Dodo liable for business losses that Mr Mclean may have suffered because of any service failures.

The TIO does not consider claims for non-financial losses in these circumstances

The TIO does not consider claims in relation to stress, mental anguish or pain and suffering, except in complaints involving a breach of privacy. This complaint does not involve a breach of privacy and accordingly I will not consider any impact that the service issues may have had on Mr Mclean's mental health, or ability to access health service providers.

The TIO has published a factsheet with more information about this, viewable [here](#).

Dodo's credits are sufficient to cover the service charges for the fault period

In my view, Dodo's service rebates are a reasonable response to the fault issues that Mr Mclean experienced.

According to the fault and account notes, Mr Mclean reported his fault issues to Dodo on or around 19 February 2020. Mr Mclean continued to experience issues until he activated an NBN service with Dodo on or around 7 May 2020.

Dodo has credited a total of \$180 to Mr Mclean, which is the equivalent of three months' service charges. Dodo additionally provided me with system screenshots showing these credits in the transaction history for Mr Mclean's account. The credit is

sufficient to cover the period that Mr Mclean experienced issues, and I am satisfied that it is fair and reasonable compensation for the issues he experienced.

Dodo has committed to charging Mr Mclean \$60 per month for his NBN services

I am satisfied that Dodo has committed to charging Mr Mclean \$60 per month (after discounts), and that no further action is required in relation to this issue.

Dodo provided me with an audio recording of the conversation in which Mr Mclean signed up for NBN services with Dodo. Having listened to the recording, I am well satisfied that Mr Mclean agreed to a monthly price of \$60 (after discounts).

I raised my findings with Dodo, and Dodo confirmed that it will charge Mr Mclean \$60 per month following discounts. In my view, this resolves this issue.

Mr Mclean agreed to a 12 month contract term for his NBN services

I am satisfied that Mr Mclean agreed to a 12 month contract term for his NBN services.

I have listened to the recording of the conversation in which Mr Mclean signed up for NBN services with Dodo. The contract term of 12 months was explained to Mr Mclean in the conversation, and Mr Mclean agreed to the NBN service.

Andrew Wynn
Senior Resolution Officer
Telecommunications Industry Ombudsman
